

Archival Source Packet

Jurisdiction	Concord, CA
County	Contra Costa County
Official Code / Document Title	Concord Development Code, Chapter 18.150 - General Development Standards, Section 18.150.130 - Performance Standards (incl. subsection O. Noise)
Chapter / Section(s) Included	Section 18.150.130, subsection O (Noise) and related exemptions
Issuing Authority	City of Concord (codified via Code Publishing Company, the city's official code portal)
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Archival cover sheet — not part of the official ordinance text.

18.150.130

Performance standards.

A. Purpose. This section establishes performance standards for all new and existing land uses, including temporary uses, to minimize operational impacts and promote compatibility with adjoining areas and uses, unless specifically exempted herein or through a condition of approval.

B. Applicability.

1. Existing

Uses

Uses

existing on the effective date of the ordinance codified in this title shall not be altered, modified, or operated to conflict with these standards.

2. New

Uses

Allowed with a Zoning Clearance. New

uses

allowed with a zoning clearance shall be operated in compliance with these standards. An administrative permit may be required if a new

use

produces any impacts that need mitigation in order to comply with these standards.

3. New

Uses

Approved by

Planning Permit

. All

uses

subject to

planning permit

approval shall comply with these standards.

C. General Standard. Land or

buildings

shall not be used or occupied in any manner that is dangerous, hazardous, or injurious as a result of smoke, dust, odor, air pollution,

glare

, refuse, wastes, chemicals, or other nuisance.

D. Electrical Disturbance, Electromagnetic Interference, or Radioactivity.

1. All activities, processes, and

uses

shall not cause electromagnetic interference with normal radio or television reception, or with the function of other electronic equipment beyond the

property line

of the subject

site

and shall comply with applicable Federal Communications Commission regulations.

2. All handling,

storage

, transportation, and

use

of radioactive materials shall comply with the provisions of the California Code of Regulations, Title

17

, and any other applicable laws.

E. Fire and Explosive Hazards. All activities, processes and

uses

involving the

use

of, or

storage

of, flammable and explosive materials shall comply with the requirements of the Contra Costa fire protection district

.

F. Ground Vibration. All activities, processes, and uses

shall not generate ground vibrations that are perceptible without instruments by a reasonable person

at the

property line

of the subject

site

. Vibrations caused by temporary activities such as construction, demolition

, and truck traffic are exempt from this standard but are subject to all conditions of any approved permit.

G. Hazardous and Extremely Hazardous Materials. All activities, use

, handling,

storage

, disposal, and transportation of hazardous and extremely hazardous materials shall comply with all the requirements of the California Hazardous Materials Regulations (California Code of Regulations, Title 22

, Division

4

), and any other applicable federal,

state

, and

county

requirements.

H.

Heat

and Humidity. All activities, processes, and

uses

shall not produce any unreasonable, disturbing, or unnecessary emissions of heat

or humidity that cause material distress, discomfort, or injury to people residing or working in the immediate area.

I. Hours of Operation. Nonresidential

uses

with outdoor parking or wall openings (i.e., windows and doors) located within 100 feet of a residential district

shall not operate between the hours of 10:00 p.m. and 7:00 a.m. unless authorized by a planning permit

.

J. Lighting and

Glare

. All activities, processes and

uses

shall be operated in compliance with CDC

18.150.110

(Outdoor lighting).

K. Mechanical or Chemical Processes. All light or

glare

from mechanical, chemical, or high-temperature processes, such as combustion or welding, shall be shielded or modified to prevent emission of adverse light or

glare

beyond the

property line

.

L. Outdoor Display and

Storage

. When allowed, all

outdoor storage

and display areas shall comply with the requirements of CDC

18.200.160

, Outdoor sales and displays, and CDC

18.150.120

,

Outdoor storage

.

M. Liquid or Solid Wastes.

1. Discharges to Water or Sewers. Liquids and solids of any kind shall not be discharged into a public or private body of water, sewage system, or into the ground, except as permitted by the California Regional Water Quality Control Board.

2. Solid Wastes. Solid wastes shall be handled and stored to prevent nuisances, health, safety, and fire hazards and to facilitate recycling. There shall be no accumulation of solid wastes outdoors conducive to the breeding of rodents or insects.

N. Maintenance of Nonresidential Properties. All properties shall be maintained in a manner that is not detrimental or injurious to the public health, safety, and general welfare or interferes with the comfortable enjoyment of life or property as a result of neglect or improper maintenance of property improvements. All

property owners

shall provide ongoing repair, replacement, and maintenance of all exterior improvements including buildings

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parking areas

, private roads, walkways,

landscaping

, irrigation,

signs

,

fences

, walls, and other improvements.

O. Noise. All noise emanating from the subject

site

shall comply with the noise standards in the safety and noise element of the general plan

. An acoustic study may be required, at the

project

applicant's expense, for any
use

which could create or be subject to noise exposure greater than that deemed normally acceptable by the
general plan

. The acoustic study shall include recommendations on noise attenuating or mitigating measures to
reduce noise impacts to acceptable levels. The following are exempt from this requirement:

1.

Emergency

Warnings. Warning devices used for alerting
persons

to the existence of an

emergency

such as police, fire, and ambulance sirens.

2.

Temporary Uses

. Special events such as fairs, festivals, civic and community events, seasonal sales
lots

, and similar events subject to CDC

18.200.200

(Temporary

uses

and structures).

3. Churches,

Schools

, and Similar Institutions. Bells, chimes, or similar sounds used by churches,
schools

, and similar institutions played between the hours of 7:00 a.m. and 7:00 p.m. if not played more than
five minutes in any one hour.

4. Municipal Solid Waste Collection. Collection of solid waste and
recyclable materials

by the

city

or under contract with the

city

.

5. Public

Projects

and Utilities. Public

projects

and maintenance undertaken by the

city

, Contra Costa

County

, the

state

or a public utility regulated by the

California Public Utilities Commission

.

6. Construction.

Site

preparation and construction activities between the hours of 7:30 a.m. to 6:00 p.m. weekdays (except on holidays) or as approved by the

city

as part of a

planning permit

.

7. Residential Activities. Home improvement and related activities; provided, that such activities do not constitute a nuisance pursuant to

CMC

8.25.020

(Nuisances defined).

P. Odors. All activities, processes, and

uses

shall not produce obnoxious or objectionable odors or fumes, perceptible without instruments, beyond the

property line

of the
site

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Q.

Screening

Between Contiguous Properties.

Fence

or wall screens on

property lines

shall be provided in compliance with CDC

18.150.180

(Transitional requirements).

R. Determination of Compliance.

1. Measurements necessary for determining compliance with the standards of this section shall be taken at the

property line

of the subject

site

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2. Any measurement or study required to determine compliance with these standards shall be prepared by an independent licensed consultant, approved by the

city

, at the expense of the

applicant

or

owner

. [Ord. 12-4. DC 2012 § 122-306].